

Control Intelligence Engine

Decision dynamics engine that identifies who actually drives disposition decisions within an estate, bridging the gap between legal title ownership and courtroom signatory authority.



The Missing Bridge: Ownership vs. Control vs. Authority

In residential real estate acquisitions, deals do not die from lack of property data—they die from negotiating with the wrong human. The Control Intelligence Engine (CIE) resolves the operational triad of probate transactions:

- Ownership: Who holds legal title of record? [Resolved by OIE]
- Control: Who actually drives the family decision to sell? [Resolved by CIE]
- Authority: Who holds the legal power to execute the deed? [Resolved by ARE]

Only when all three are aligned can an acquisition team successfully execute a contract.

1. The Core Decision Dynamics Problem

In over 70% of probate acquisitions, the person with formal legal authority is NOT the person leading the disposition process. Typical failure scenarios in generic lead generation include:

- **The Figurehead Fiduciary:** An elderly surviving spouse is appointed executor, but is cognitively overwhelmed or grieving. Outreach to the spouse is rejected, while the adult daughter managing the household finances is actively seeking an as-is cash buyer.
- **The Disconnected Out-of-State Sibling:** The out-of-state sister is named executor in the will, but the local brother is living in the home, maintaining the property, and holds physical keys and de-facto veto power.
- **The Unempowered Champion:** An investor negotiates for weeks with an enthusiastic heir, only to discover at the title company that the heir has zero legal power of sale and four estranged siblings refuse to sign.

2. The Five Archetypal Control Configurations

CIE maps every opportunity into one of five structural control models, dictating the precise outreach strategy for partner acquisitions reps:



Model 1: Unified Fiduciary Control

- Owner: Estate of Decedent
- Control: Sole Adult Child / Primary Heir
- Authority: Appointed Executor with Letters
- Dynamics: Control and Authority are unified in one motivated individual. Highest transaction velocity. Direct outreach on price and timeline.



Model 2: The Informal Family Leader (Dispersed Ownership)

- Owner: 5 Heirs in Intestacy (Tenancy in Common)
- Control: Family Matriarch / Eldest Sibling
- Authority: Unresolved (Formal probate not yet completed)
- Dynamics: The entire family defers to one trusted sibling. Securing buy-in from this leader unlocks the consensus needed to file for probate and sign co-tenancy joinders.



Model 3: The Proxy Controller

- Owner: Estate / Ailing Surviving Spouse
- Control: Adult Caretaker Child (Managing affairs / Power of Attorney)
- Authority: Surviving Spouse or Conservator
- Dynamics: Negotiations must address the caretaker's burden of home maintenance, while contract execution is legally coordinated with the nominal titleholder.



Model 4: The Trust-Fiduciary Convergence

- Owner: Revocable Living Trust
- Control: Successor Trustee
- Authority: Successor Trustee under Trust Instrument
- Dynamics: Non-probate disposition. Control and Authority converge outside court oversight. Rapid private closing upon receipt of Certificate of Trust.



Model 5: Contested Factional Control (Hostile Gridlock)

- Owner: Estate
- Control: Competing Factions (e.g., Second Spouse vs. Adult Children from First Marriage)
- Authority: Competing Petitions / Court-Appointed Neutral Administrator
- Dynamics: High-friction trap. CIE assigns maximum Deal Friction penalty and diverts file to milestone watch.

3. De-Facto Decision-Maker Identification Heuristics

CIE uses four algorithmic heuristics to identify the practical controller before human outreach begins:

- **Occupancy & Property Custody:** Identifies which heir or relative currently resides at the property or pays ongoing utilities/property taxes.
- **Petition Sponsorship & Legal Retainer:** Tracks who engaged legal counsel and paid filing fees. The petitioner who funded the court petition is the primary commercial mover.
- **Geographic Proximity Dominance:** In multi-heir estates, local heirs within 25 miles hold physical control over home access, cleanout, and repairs compared to distant out-of-state heirs.
- **Generational Influence Factor:** Resolves family hierarchy (e.g. primary surviving son managing affairs for an incapacitated surviving parent).

4. The Architectural Handoff: OIE -> CIE -> ARE

CIE acts as the central intellectual bridge in Gieni's core platform architecture:

```
interface ControlIntelligenceRecord {
    opportunityId: string;
    parcelId: string;

    // From OIE (Ownership)
    titleholderOfRecord: string;
    vestingStructure: "Sole Ownership" | "JTWR0S" | "Trust" | "Tenancy in Common" | "Heir Property";
    ownershipComplexityScore: number;

    // From CIE (Control)
    controlArchetype: "Unified Fiduciary" | "Informal Family Leader" | "Proxy Controller" | "Trust Fiduciary" | "De Facto Decision Maker";
    deFactoDecisionMaker: {
        fullName: string;
        relationshipToDecedent: string;
        isOccupant: boolean;
        isPetitionSponsor: boolean;
        proximityMiles: number;
        contactReadiness: "Ready" | "Partial" | "Missing";
    };
    consensusRequirements: {
        totalHeirsCount: number;
        unanimousConsentRequired: boolean;
        familyLeaderIdentified: boolean;
    };

    // Handoff to ARE (Authority)
    legalSignatoryTarget: {
        role: "Executor" | "Administrator" | "Successor Trustee" | "All Heirs Jointly";
        authorityState: "Confirmed" | "Likely" | "Unresolved";
    };
}
```

5. Outreach Playbook by Control Archetype



Actionable Outreach Directives for Acquisitions:

- Unified Fiduciary: Lead with certainty, speed, cash terms, and as-is purchase to minimize estate closing overhead.
- Informal Family Leader: Position the partner as a problem-solver who can facilitate the probate filing, cover title costs, and provide moving support.
- Proxy Controller: Speak to the burden of managing parents' affairs and deferred maintenance liabilities.
- Trust Fiduciary: Emphasize clean, non-court private conveyance matching the grantor's estate planning goals.